

COMMERCIAL, PROMOTIONAL, AND CORPORATE SPONSORSHIPS AND PARTNERSHIPS

A. Generally. The Loudoun County School Board recognizes that corporate and other private sponsorship of programs and activities related to education can provide valuable enhancement of the educational program offered by the School Board. For that reason, the School Board may enter into commercial, promotional, and corporate sponsorship and partnership arrangements under certain conditions. This policy is not applicable to school-support organizations, which are governed by Policy 8020.

B. Definitions.

1. Educational Partnership. A co-operative relationship in which partners share our values, objectives, and/or educational interests to enhance learning for students for which the partner receives nothing in return except for good public relations or good will, e.g., providing time off for their employees to mentor/tutor students for a specified period of time.

2. Educational Sponsorship. An arrangement pursuant to which the sponsor provides money, price reductions, equipment, materials, services, or other benefits in exchange for public recognition of its goods and services, e.g., a local business sponsorship of a student organization for a specified period of time.

C. Authority to Enter into Agreements.

1. Educational Partnerships.

- a. On behalf of the School Board, Principals may enter into educational partnerships for their schools when: (1) the partnership does not extend beyond a single school year; (2) no benefits are accruing to the vendor, except good will or good public relations; and (3) the partnership only impacts one school.
- b. On behalf of the School Board, the Superintendent or Cabinet Members may enter into educational partnership agreements on behalf of LCPS when: (1) no benefits are accruing to the vendor, except good will or good public relations; (2) the partnership will benefit more than one school; (3) the partnership will benefit the Division as a whole; or (4) the partnership extends beyond a single school year.

2. Educational Sponsorships.

- a. On behalf of the School Board, Principals may enter into educational sponsorships for their schools when the sponsorship does not: (1) extend beyond a single school year; and (2) exceed \$5,000 in value.
- b. On behalf of the School Board, the Superintendent or Cabinet Members may enter into educational sponsorships which will: (1) benefit more than one school; (2) benefit the Division as a whole; (3) exceed \$5,000 in value; or (4) extend beyond a single school year.

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D. Requirements. Any agreement to enter into an educational sponsorship or educational partnership must be in writing and must be reviewed and approved by LCPS Procurement Services and Risk Management prior to the negotiation and signing of any agreement, to ensure compliance with the Virginia Public Procurement Act. The written agreement shall, at a minimum, include the following items, where applicable:

1. The educational purpose for the relationship.
2. A statement that the School Board has the right to terminate the agreement without penalty if such termination is in the best interests of the school and/or School Division.
3. A statement that the School Board has a right to terminate the agreement without penalty if it determines that the agreement is having an adverse impact on the educational experience of students. If an agreement is terminated because of an adverse impact on the educational experience of students, no other agreement for an educational partnership or sponsorship will be entered into between the School Board and the partner or sponsor whose agreement has been terminated for a specified period of time.
4. A statement detailing the specific benefits to the school or School Division from the agreement.
5. A statement clearly defining the roles, expectations, rights, and responsibilities of all parties to the agreement. This statement shall include a statement of whether the agreement permits the sponsor or partner to advertise in connection with the agreement and, if so, the extent of such advertising.
6. A statement clearly defining whether the agreement creates any exclusive rights for the sponsor or partner, and, if such rights are created, clearly defining those rights. If no exclusive rights are created, the agreement shall include a statement that the existence of the sponsorship or partnership will not limit the discretion of the School Board or its personnel in the use of sponsored or non-sponsored materials.
7. The duration of the agreement.
8. A statement that the school or School Board retains the exclusive right to authorize the use of LCPS or the school name, logo, or other similar information.
9. A statement that the school or School Board must approve its identification as a partner or co-sponsor in all publicity materials.
10. A statement of the monetary value to be received by the school or School Division pursuant to the agreement.
11. A statement defining how the benefits arising from agreement will be distributed.

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12. A statement of the basis on which students will be permitted to participate in the program or otherwise benefit from the agreement.
13. A statement that the sponsor or partner assumes the responsibility for obtaining the consent of any student or School Board employee whose likeness may appear in any materials disseminated by the partner or sponsor.
14. A statement disclosing any relationship between the sponsor or partner, or any of its employees or major stockholders, and any student, School Board employee, School Board member, or the Superintendent.
15. A statement that all partnerships and sponsorships will be consistent with all federal and state laws, local ordinances, zoning laws, land use restrictions, business permit requirements, and School Board policies and regulations and with all preexisting School Board contracts.
16. A statement that, if the terms of the partnership or sponsorship agreement establish that the employees, contractors, or others acting on behalf of the partner or sponsor will have direct contact with students on school property during regular school hours or during school-sponsored activities, the sponsor or partner must certify that all such persons have not been convicted of any violent felony set forth in the definition of barrier crime in subsection A of Va. Code § 19.2-392.02; any offense involving the sexual molestation or physical or sexual abuse or rape of a child, or the solicitation of any such offense, or any crime of moral turpitude.
17. A statement that no partnership or sponsorship shall exploit any student or School Board employee.
18. A statement that no sponsor or partner shall be permitted to collect or share personal information, including names, addresses, or telephone numbers of students or School Board employees because of the partnership or sponsorship.
19. A statement that any curriculum materials provided pursuant to the agreement will be held to the same standards as other curriculum materials.
20. A statement that any participation by any student or School Board employee in any activity established pursuant to the agreement will be purely voluntary.
21. A statement that, if any funding is required by a school or the School Division, that such funding is subject to appropriations by the Loudoun County School Board.
22. A statement that no Party to the agreement shall unlawfully discriminate against any individual or organization based on race, color, national origin, religion, sex, pregnancy, childbirth or related medical conditions, sexual orientation, gender identity, gender expression, marital status, veteran status, disability, age, genetic information, or any applicable state or federal regulation or law. The Parties shall comply with Title VI and VII of the Civil Rights Act of 1964, Title IX of the Education Amendments of 1972, Section

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504 of the Rehabilitation Act of 1973, the Americans with Disability Act of 1990, and the regulations related thereto.

23. A statement that the agreement shall be construed, governed and interpreted by and in accordance with the laws of the Commonwealth of Virginia. Any litigation with respect to the agreement shall be brought in either the Circuit Court of Loudoun County or the United States District Court for the Eastern District of Virginia- Alexandria Division.

E. Prohibitions. No agreement shall be entered into if the educational sponsorship or partnership involves or gives the appearance of involving any activity which could result in the:

1. Promotion of hostility or violence;
2. An attack on ethnic, racial, or religious groups;
3. Discrimination prohibited by any law or School Board policy;
4. Promotion of the use of drugs, alcohol, tobacco, electronic cigarettes, firearms, or weapons;
5. Promotion of sexual, obscene, or pornographic activities; or
6. Promotion of any image that is not in keeping with the established goals and purposes of the School Board.

All agreements must comply with Policy 6-27 (Use of or Access to School Facilities for Non-School Purposes) Policy 6310 - Facility Use, and the supporting Regulation 6310 - Facility Use including, if necessary, submission of the LCPS Application for Community Use of School Facilities and Grounds by All Non-School Users, and any advertising guidelines or regulations promulgated by the Superintendent.

Adopted: 1/13/15
Revised: 11/26/24

Legal Refs.: Va. Code §§ [22.1-79.5](#), [22.1-89.4](#), [22.1-296.1](#) (citing Va. Code § [19.2-392.02](#)).

Cross Refs.: [Policy 6310](#), Facility Use; [Policy 8020](#), Relations with School Support Organizations; [Policy 6510](#), Naming School Facilities; [Policy 4030](#), Non-Locally Funded Programs